



Policy for Dealing with Allegations Against Staff regarding Abuse of Children
Policy written June 2025 – Review date June 2027

Introduction

This guidance is about managing cases of allegations that might indicate that a member of staff would pose a risk of harm if they continue to work in regular or close contact with children in their present position, or in any capacity. It will be used in respect of all cases in which it is alleged that a teacher or member of staff in a school (including a volunteer) has:-

- behaved in a way that has harmed a child, or may have harmed a child.
- possibly committed a criminal offence against or related to a child; or,
- behaved towards a child or children in a way that indicates he / she would pose a risk of harm to children.

Any allegation of abuse made against a teacher, or member of staff in a school (including a volunteer) will be dealt with quickly and in a fair and consistent manner and according to the procedure outlined in this policy to provide effective protection for the child and at the same time ensuring there is appropriate duty of care for the subject of the allegation.

For all other complaints excluding abuse refer to the complaints policy

Historical allegations of abuse against a teacher who is no longer teaching at the school will be referred to the police.

Procedure

In the first instance, the headteacher (or where the head teacher is the subject of an allegation the chair of governors) will discuss the allegation with the deputy designated Safeguarding Lead. The purpose of the discussion is to consider the nature, content and context of the allegation and agree a course of action. The DSL may need to obtain further information such as past history (e.g. information in school or from outside agencies), whether there is a history of allegations and the individuals current contact with children.

Where there is evidence of a possible criminal offence or if the accused individual is deemed an immediate risk to children the DDSL will involve the police.

Where there is no such evidence the DDSL and headteacher will consider whether police involvement is necessary.

During this initial evaluation of the facts, it may be decided that no further action is to be taken with regard to the individual facing the allegation. This decision and justification for it will be recorded by both the DDSL and headteacher. They will also decide what information should be put in writing to the accused individual and what action should follow in respect of the accused individual and those who made the allegation.

The following definitions should be used when determining the outcome of allegation investigations:-

- **Substantiated** – There is sufficient evidence to prove the allegation
- **Malicious** – there is sufficient evidence to disprove the allegation and there has been a deliberate act to deceive.
- **False** – there is sufficient evidence to disprove the allegation
- **Unsubstantiated** – there is insufficient evidence to either prove or disprove the allegation. The term therefore does not imply guilt or innocence.
- **Unfounded** – to reflect cases where there is no evidence or proper basis which supports the allegations made.

The DDSL will inform the accused individual about the allegation as soon as possible, however where the police or children's social care need to be involved they should not inform the individual until these agencies have been consulted and have agreed what information can be disclosed to the accused.

The head teacher will need to consider whether the circumstances of the case warrant a person being suspended from contact with children at the school. All options to avoid suspension will be considered prior to taking that step.

If there is cause to suspect a child is suffering from or likely to suffer significant harm a strategy discussion will be convened in accordance with the statutory guidance 'Working together to safeguard children' with the appropriate agencies. If the allegation is about physical contact the strategy discussion will take into account

that school staff are entitled to use reasonable force to control or restrain a child in certain circumstances including dealing with disruptive behaviour.

Where an investigation by social services or the police is unnecessary, the SLT will make a decision based on the nature and circumstances of the allegation and the evidence and information available decide in conjunction with the staff disciplinary policy what steps need to be taken. This will range from taking no further action up to and including dismissal.

Where the police or children's social services are involved this will not replace our disciplinary process.

The LADO can be contacted by the school for help and support and if an incident needs to be reported. This provides accountability and transparency and protects the person who has been investigating.

Responsibilities of staff

All staff and volunteers should pass any allegation where they have concerns about the behaviour of another member of staff to the DSL, or in case of absence the designated deputy. The allegation will be dealt with in accordance with national guidance as implemented by the Leicester Safeguarding Children Board.

Supporting those involved

Emmanuel Christian school has a duty of care to its employees. Individuals involved in the allegations process will be informed of the allegations subject to above and be given an explanation as to the likely course of action. They will also be provided with an appropriate contact at the school during the process.

Parents or carers of a child or children involved will be told about the allegation as soon as possible if they do not already know of it unless there is an objection by the police or children's social services. They will also be kept informed about the progress of the case, and told the outcome where there is no criminal prosecution, including the outcome of disciplinary proceedings, in confidence. subject to current Data Protection Regulations.

In cases where a child may have suffered significant harm, or there may be a criminal prosecution, children's social care, or the police as appropriate, will consider what support the child or children involved may need.

Confidentiality

Every effort will be made to maintain confidentiality and guard against unwanted publicity while an allegation is being investigated / considered. The Education Act 2002 introduced reporting restrictions preventing the publication of any materials that may lead to the identification of a teacher who has been accused by or on behalf of a pupil from the same school. The reporting restrictions apply until the point that the person is charged with a criminal offence, or until the Secretary of State publishes information about the investigation or decision in a disciplinary case arising from the allegation. The reporting restrictions will also cease to apply if the individual to whom the restrictions apply effectively waives their right to anonymity by going public themselves.

Record keeping

Details of allegations that are found to have been malicious will be removed from personnel records.

For all other allegations it is important that a clear and comprehensive summary of any allegations made, details of how the allegation was followed up and resolved, and a note of any action taken and decisions reached, is kept on a person's confidential personnel file, and a copy provided to the person concerned.

The purpose of the record is to enable accurate information to be given in response to any future request for a reference if the person has moved on. It will provide clarification in cases where a future DBS disclosure reveals information from the police about an allegation that did not result in a criminal conviction. And it will help to prevent unnecessary reinvestigation if, as sometimes happens, an allegation re-surfaces after a period of time. The record will be retained at least until the person has reached normal retirement age or for a period of 10 years from the date of the allegation if that is longer.

If the accused person resigns, this will not prevent an allegation being followed up in accordance with this policy.

A referral to the DBS must be made if proven the individual has harmed or poses a risk of harm to a child.

Timescales

It is in everyone's interest to resolve cases as quickly as possible consistent with a fair and thorough investigation. Every effort will be made to manage cases to avoid any unnecessary delay.

Other Related Policies and Reference

This policy should be read in conjunction with:-

- The safeguarding and child protection policy
- The staff discipline policy
- The complaints policy
- The data protection policy
- The staff code of conduct

Legislation that has been used in the writing of this policy:-

- Keeping Children safe in education
- The Education Act 2002
- Working together to safeguard children 2018

This policy was written in June 2023 and will be reviewed bi-annually.

Formally agreed through Governors compliance:	
Signed Julian Mercik – Chair of Governors	29/06/25
Signed Andy Harris – Head Teacher	29/06/25
Review Date:	29/06/27